

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased: 12/17/2019

-----X
LAMEC PENA,

SUMMONS

Plaintiff,

Plaintiff designates BRONX
County as the place of trial.

-against-

The basis of venue is:
Situs of Tort

THE CITY OF NEW YORK and
P.O. RONALD HOBSON, NYPD Shield 017689,

Defendants
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Eastchester, New York
December 17, 2019



Thomas G. Cascione
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff
LAMEC PENA
274 White Plains Road, Suite 6
Eastchester, New York 10709
(914) 961-1263
Our File No. 4102

TO: New York City Law Department
Attorneys for Defendants THE CITY OF NEW YORK
100 Church Street
New York, NY 10007
Claim #2019PI015506

P.O. RONALD HOBSON, NYPD Shield #017689
NYPD 46th Precinct
2120 Ryer Ave.
Bronx, NY, 10457-2919

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased: 12/17/2019

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LAMEC PENA,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK and
P.O. RONALD HOBSON, NYPD Shield 017689,

Defendants
-----X

Plaintiff LAMEC PENA, by his attorneys CASCIONE, PURCIGLIOTTI & GALLUZZI,

P.C., complaining of the Defendants respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff LAMEC PENA resided in the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State of New York.
3. That on May 15, 2019, and at all times herein mentioned, Defendant THE CITY OF NEW YORK was, and still is, a municipal corporation.
4. At all times relevant and material herein, the defendant, P.O. RONALD HOBSON, NYPD Shield 017689 was a member of the New York City Police Department and employee of Defendant, THE CITY OF NEW YORK.
5. That on or before June 6, 2019 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30)

days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That thereafter a hearing pursuant to General Municipal Law 50(h) was held on July 30, 2019.
7. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.
8. At approximately 3:30 a.m. on February 21, 2015 in the vicinity of 1750 Sedgwick Avenue in the County of the Bronx while plaintiff LAMEC PENA was lawful seated in a parked vehicle, defendant P.O. RONALD HOBSON, NYPD Shield 017689 in his capacity as an officer of the NYPD, took him out of the vehicle, violently handcuffed him and conducted a warrantless arrest without probable cause.
9. Plaintiff LAMEC PENA was taken into custody and was later transported to Central Booking. Plaintiff was charged with Driving While Intoxicated although he was sober and had not been driving at the time of his arrest.
10. On February 22, 2015 Plaintiff LAMEC PENA was arraigned and was released but continued to come to court until he was acquitted of all criminal charges in Bronx Criminal Court over four years later on May 15, 2019.
11. Upon information and belief, defendant P.O. RONALD HOBSON, NYPD Shield 017689 had a history of false arrests, many of which were for DWI and the City of New York knew or reasonably should have known that he was maliciously prosecuting plaintiff LAMEC PENA.

12. That from on or about February 22, 2015 until May 15, 2019, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing to be filed a complaint in Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of a violation of the criminal laws of the State of New York.
13. On May 15, 2019, in Bronx Criminal Court all charges against plaintiff LAMEC PENA were dismissed on the merits.
14. Because of the above stated malicious prosecution, Plaintiff LAMEC PENA was caused to lose time from employment and other activities, suffered damage to his reputation and was otherwise financially damaged. Plaintiff was caused to have suffered emotional pain, suffering and humiliation.
15. That as a result of the foregoing malicious prosecution, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

WHEREFORE, Plaintiff LAMEC PENA demands judgment against the Defendants upon the cause of action set forth above, jointly and severally, each in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action; together with the costs and disbursements of this action and punitive damages.

Dated: Eastchester, New York
December 17, 2019

Thomas G. Cascione (tcascione@cpglawyers.com)
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff LAMEC PENA
274 White Plains Road, Suite 6
Eastchester, New York 10709
(914) 961-1263

Our File No. 4102

ATTORNEY'S VERIFICATION

THOMAS G. CASCIONE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C., attorneys of record for Plaintiff, LAMEC PENA. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside in the county wherein I maintain my offices.

DATED: Eastchester, New York
December 17, 2019



THOMAS G. CASCIONE

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LAMEC PENA,

Plaintiff,

-against-

THE CITY OF NEW YORK and
P.O. RONALD HOBSON, NYPD Shield 017689,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.

Attorneys for Plaintiff(s)
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